

Gaurav Masala Udhyog v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 May 2024 · 2024:AHC:81050-DB · WRIT - C No. 14865 of 2024 · **Writ disposed; liberty to object under Clause 6.5**

HEADNOTE

A writ challenging a recovery certificate for electricity dues is disposed of with liberty to file an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the issuing authority.

FACTUAL SUMMARY

The petitioner, Gaurav Masala Udhyog, challenged a recovery certificate dated 04.10.2023 issued by respondent No. 3 for electricity dues. Counsel for the Electricity Department submitted that the petitioner had an alternative remedy of filing an objection before that respondent under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005. The Division Bench found force in that submission.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to recovery of electricity dues

HOLDING

A consumer challenging a recovery certificate for electricity dues has an alternative remedy of filing an objection under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 before the authority that issued the certificate; the writ is disposed of with liberty to avail that remedy. ¶ 2-3

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging a recovery certificate for electricity dues is disposed of with liberty to file an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 before the issuing authority. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 04.10.2023

Writ disposed on alternative remedy under Clause 6.5; merits of the dues and recovery not examined. ¶ 1-3